

CORY LEA SHEPHERD

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The Registrar
Queensland Industrial Relations Commission
By email: qirc.registry@qirc.qld.gov.au

Dated 1 October 2026

WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator
Direction 5 of the Further Directions Order (3) dated 19 August 2026, and questions for the Respondent

Dear Registrar,

1. The directions are complete

I filed my list of witnesses and served my outlines of evidence on 9 September 2026. The Respondent filed its list of witnesses and served its outlines of evidence on 24 September 2026, and the time for its material under directions 3 and 4 expired at 4.00 pm on 30 September 2026. In accordance with direction 5, I write to progress the matter.

2. The facts and documents

On 8 September 2026 the Respondent answered my notices to admit facts and documents of 28 August 2026. It admitted 298 of the 303 facts. The other five were not admitted, and none was denied. It admitted the authenticity of 25 of the 39 documents annexed to the notices.

On 24 September 2026 the Respondent confirmed the authenticity of four more documents, and it has asked Metro South Health for nine others. Twenty-nine of the 39 documents are therefore now admitted or confirmed. The ten that remain are listed in the attached schedule. Each is a record of Metro South Health or of the Appellant's union. For every one of them except Tab 31, the contents are already admitted, and the only question left is the authenticity of the copy.

No admission has been withdrawn. The Respondent has served no medical or expert evidence, and the time for it to do so has expired.

3. The questions for the Respondent

I enclose a paper that I have today provided to the Respondent. It sets out, stressor by stressor, the facts the Respondent has admitted; fifteen questions arising from the Respondent's outlines of evidence, each by reference to those facts; and a schedule asking the Respondent to state its settled position under section 32(5) of the *Workers' Compensation and Rehabilitation Act 2003*, on each action and on the course of conduct, as particulars of paragraph 27 of its amended statement of facts and contentions. The Respondent admits that paragraph 27 does not identify the management action relied on (fact 303). I have asked the Respondent to respond by 15 October 2026. The paper contains no submission.

4. How the matter should proceed

In accordance with direction 5, and in the interests of the efficient administration of justice, I set out two courses for the Commission's consideration. I leave to the Commission which, if either, is appropriate.

First, if the Respondent also agrees and the Commission considers it appropriate, the appeal could be heard and decided under rule 44 of the *Industrial Relations (Tribunals) Rules 2011* on the documentary record: the admitted facts, the documents whose authenticity is admitted or confirmed, and my schedule of medical documents relied upon served on 9 September 2026, with written submissions, and with any matter that either party identifies as requiring oral evidence, including the evidence of the medical witnesses, heard separately. The Respondent's response to my letter of 25 September 2026 may bear on whether that course is available.

Otherwise, I ask that the matter proceed to a second conference under section 552A of the *Workers' Compensation and Rehabilitation Act 2003*, to establish what remains in issue and what the Respondent still requires to be proved. If the Respondent is able to state its position in writing, the conference may be confined to what then remains. I believe the following matters are capable of resolution there, or by agreement:

- (a) the ten documents listed in the attached schedule, by agreeing a list of documents to be tendered without further proof: the nine in Part A once Metro South Health provides its copies, and Tab 24 in Part B by agreement or through Ms Conaghan, a recipient of it;
- (b) facts 228 to 231, on production of the MET call spreadsheet that Metro South Health, in its letter of 5 June 2026, states is available;
- (c) whether the Respondent requires the medical witnesses to attend for cross-examination;
- (d) the management action relied on at paragraph 27 of the Respondent's amended statement of facts and contentions; and
- (e) the production of documents referred to in the Respondent's outlines of evidence, to the extent not already disclosed, including the Technical Support advice referred to by Ms Wright and the email of 15 May 2024 at 4:12 pm referred to by Ms Reese. I requested these from the Respondent by letter of 25 September 2026.

When the remaining documents are confirmed and the Respondent has responded, the primary facts will be settled. What will remain is the application of the law to those facts, and the medical evidence. Any issue not resolved by either course could then be listed for a hearing confined to it. I would be assisted by any direction the Commission considers appropriate, including as to the time for the Respondent's response.

5. The documents

I have not attached the notices to admit facts and documents of 28 August 2026, Annexure A to them, or the Respondent's responses of 8 September 2026. I can provide them, and any document referred to in the paper, if the Commission requires.

6. Readiness

If the matter does not resolve, I am ready to proceed to a hearing with the witnesses and material I have served. I will abide by whatever course the Commission considers most appropriate, after hearing from the Respondent, and I await the Commission's direction.

A copy of this letter and its enclosure is provided to the Respondent.

Yours faithfully,



Cory Lea Shepherd
Appellant, self-represented

WC/2024/227 – Schedule to the letter of 1 October 2026: the ten documents that remain to be confirmed

Tab numbers are those of Annexure A to the Appellant's notices of 28 August 2026. Fact numbers are those of the Form 24 notice as answered on 8 September 2026. "SOFC" is the Respondent's amended statement of facts and contentions dated 13 May 2026. The 29 other documents annexed to the notices have been admitted (8 September 2026) or confirmed (24 September 2026: Tabs 6, 20, 30 and 30A).

Part A – the nine documents the Respondent has asked Metro South Health to provide (24 September 2026)

Tab	Document	Held by	Contents admitted	Issue in the Respondent's pleading
1	Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital	Metro South Health. Supplied by it to the Appellant as Attachment 2 to its request for medical information of 31 July 2026 (Mr Hughes)	Facts 1 to 13	The duties of the position, including the database (fact 6), the emergency response process (fact 8) and continuous 24-hour, 7-day shift work (facts 2, 13). SOFC [11], [22]
5	Email, Ms Taylor to the Appellant, "Approved - Permanent Full Time FTE", 27 September 2023, 1:52 pm	Metro South Health	Fact 38	The change to full-time hours from 16 October 2023, and whether the 2020 agreement continued to apply after it. SOFC [22(e)]; facts 252, 254
17 to 19	Movement forms, 27 February, 17 April and 9 June 2026, each approved by Mr Hughes as delegate	Metro South Health	Facts 14, 15	Each records the Appellant as a "Continuous Shift Worker". SOFC [22(d)]
21	Email, Ms L Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, to the Appellant, 7 July 2026	Metro South Health	Facts 224, 225	The scope of the 2020 eight-hour agreement: "only applied where staff initiated shift swaps have occurred". SOFC [22(e)]
22	Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital, November 2024	Metro South Health	Facts 169 to 175	Roster negotiations from 22 July 2021, and the August 2024 realignment of the reporting line (fact 170). SOFC [19], [22]
23	Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, December 2024	Metro South Health	Facts 167, 168, 176, 177	The outcome of that consultation. SOFC [19], [22]
31	"2024 Emergency Code Register.xlsx", March 2024 sheet, entries for 16 to 20 March 2024	Metro South Health. Its letter of 5 June 2026 (K-LM26/729, Items 1 and 2) states that "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024" (fact 268)	Facts 228 to 231 not admitted. Fact 268 admitted	The emergency calls recorded on the shifts either side of the break of 17 to 18 March 2024. SOFC [22(a)], [22(f)]

Part B – the one document whose authenticity remains disputed and is not sought from Metro South Health

Tab	Document	Held by	Contents admitted	Issue in the Respondent's pleading
24	Email, Mr H Moran, Organiser, Together Queensland, to Ms C Jeffrey, Ms P Conaghan and the Appellant, 3 November 2025	Together Queensland; each recipient. Ms Conaghan is on the Appellant's list of witnesses	Facts 178, 179	The Appellant's endorsement as a workplace delegate. SOFC [17]